

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

-----X
CHAZ MOORE

Plaintiff(s),

-vs-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE OFFICER
FURNO STEPHENS SHIELD #: 6154, NEW YORK CITY
POLICE OFFICERS JOHN AND JANE DOE #1-
10(intended as police officers whose names and identifying
information are unknown)

Defendant(s).
-----X

Index No.:

Date Purchased:

SUMMONS

Plaintiff designates Richmond
County as the place of trial.

The basis of venue is:
location where the cause of
action arose

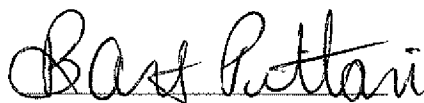
Plaintiff resides at:
128 Lockman Avenue

Staten Island, NY 10303
County of Richmond

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: NEW YORK, NY
April 12, 2023



Bart Andrew Pittari, Esq
GREENSTEIN & MILBAUER, LLP
Attorney for Plaintiff(s)
Chaz Moore
1825 Park Avenue
9th Floor
New York, NY 10035
(212) 685-8500
Our File No. 20256

TO:

City of New York
100 Church Street
New York, NY 10007

New York City Police Department
One Police Plaza
New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
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CHAZ MOORE

Plaintiff(s),

-vs-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, NEW YORK CITY POLICE OFFICER
FURNO STEPHENS SHIELD #: 6154, NEW YORK CITY
POLICE OFFICERS JOHN AND JANE DOE #1-10(intended as
police officers whose names and identifying information are
unknown)Defendant(s).
-----XIndex No.:
Date Purchased:**VERIFIED
COMPLAINT**

Plaintiff by his attorneys, **GREENSTEIN & MILBAUER, LLP**, complaining of the
Defendants, respectfully alleges, upon information and belief:

1. That on or about March 23, 2022, in the vicinity of 128 Lockman Ave., Staten Island, NY 10303, Plaintiff was lawfully a visitor to those premises.
2. That on or about March 23, 2022, in the vicinity of 128 Lockman Ave., Staten Island, NY 10303, Defendants approached Plaintiff wherein they handcuffed and arrested the Plaintiff.
3. That at no time was Plaintiff engaged in any criminal or unlawful activity.
4. Thereafter the Plaintiff was arrested and transported to the 121st Precinct.
5. That while Plaintiff was at this Precinct, the Plaintiff was searched and nothing of an illegal nature was recovered.
6. That after being held in a cell inside of this Precinct for approximately one day Plaintiff was transported to Central Booking.
7. That after being held at Central Booking for approximately one day, Plaintiff was released from custody.

8. The District Attorney's Office of Staten Island County declined prosecution for which Plaintiff was arrested for on March 23, 2022.

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF CHAZ MOORE:

42 U.S.C. SECTION 1983, EXCESSIVE FORCE, FALSE ARREST AND VIOLATION OF PLAINTIFF'S CIVIL AND CONSTITUTIONAL RIGHTS

9. This is an action for damages sustained by a citizen of the United States of America against **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT** who violated Plaintiff's Federal and State Constitutional and Civil rights, including but not limited to the First, Fourth, Fifth and Fourteenth Amendments to the United States Constitution, who unlawfully assaulted Plaintiff, and who acted negligently as Officers employed by **THE CITY OF NEW YORK** and **NEW YORK CITY POLICE DEPARTMENT**, which are sued as a person under 42 U.S.C. section 1983.
10. This action is brought pursuant to 42 U.S.C. section 1983 and the First, Fifth, Eight and Fourteenth Amendments to the Constitution of the United States and arising under the law and statutes of the State of New York, including but not limited to New York Civil Rights Law Section 40-c.
11. At all times herein mentioned, Plaintiff **CHAZ MOORE** was, and still is, a Citizen of the United States and a resident of the County of STATEN ISLAND, City and State of New York.
12. At all times herein mentioned, Defendants, Officer "NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10", individually and as New York City Police Officers, were assigned to **THE NEW YORK CITY POLICE DEPARTMENT** as officers employed by **THE CITY OF NEW YORK** and/or **THE NEW YORK CITY POLICE DEPARTMENT**. At all relevant times, they were acting in such capacity as

the agents, servants, and/or employees of the Defendants, **THE CITY OF NEW YORK** and/or **THE NEW YORK CITY POLICE DEPARTMENT** and were acting under the color and pretense of the statutes, ordinances, regulations, customs and usages of the State of New York and the City of New York, and under the authority of their office as Officers of City and of the State of New York. They are sued individually and in their official capacity.

13. At all times relevant hereto, Defendants, **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, were responsible for the training, supervision, and conduct of the Defendants, “**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**”, herein. They were also responsible by law for enforcing the regulations of **THE CITY OF NEW YORK** and **THE NEW YORK CITY POLICE DEPARTMENT**, and for ensuring that **THE CITY OF NEW YORK**’s personnel obey the laws of the City and State of New York and of the United States.
14. That at all times herein mentioned, the defendant, **THE CITY OF NEW YORK**, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the Defendants named herein.
15. That at all times herein mentioned, the defendant **THE NEW YORK CITY POLICE DEPARTMENT**, was a municipal corporation duly existing under and by virtue of the laws of the State of New York, and at all relevant times, it employed the Defendants named herein.
16. That on March 23, 2022, and at all times herein mentioned, the Defendant, **THE CITY OF NEW YORK** was, and still is, a municipal corporation.
17. That on March 23, 2022, and at all times herein mentioned, the Defendant, **NEW YORK CITY POLICE DEPARTMENT** was, and still is, a municipal corporation.

18. Each and all of the acts of Defendants alleged herein were done by Defendants, and each of them, not as individuals, but under the color and pretense of the statutes, ordinances, regulations, customs, and usages of the City of New York and the State of New York, and under the authority of their office as Officers for **THE CITY OF NEW YORK**.
19. On or about June 16, 2022, and within ninety (90) days following the occurrence, the Plaintiff served a Notice of Claim against the Defendants, in writing sworn to by said Plaintiff, containing all such information as pertained to the happening of the accident complained herein.
20. That this action is commenced within one year and ninety days after the cause of action arose.
21. That more than thirty (30) days have elapsed since the aforesaid Notice of Claim was served on the Defendants.
22. That all conditions and requirements precedent to the commencement of this action have been complied with.
23. That the oral examination of the Plaintiff has been conducted in compliance with section 50-h of the General Municipal Law.
24. That this action falls within one or more of the exceptions set forth in CPLR 1602.
25. That pursuant to CPLR section 1602, the Defendants are jointly and severally liable for all of Plaintiff's damages, including but not limited to Plaintiff's non-economic loss, by reason of the fact that Defendants, their agents, servants and/or employees, owed the Plaintiff a non-delegable duty of care; that said Defendants acted with reckless disregard for the safety of the Plaintiff and other; that the conduct of the Defendant was intentional; that the Defendants are vicariously liable for the negligent acts and omissions of others, including their agents, servants and/or employees, who caused or contributed to Plaintiff's damages; and that Defendants acted knowingly or

intentionally, and in concert, to cause the acts or omissions which are the proximate cause of Plaintiff's injuries.

26. That at all times herein mentioned, the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, operated a department, specifically the **NEW YORK CITY POLICE DEPARTMENT**, as part of and in conjunction with its municipal function.
27. That at all times herein mentioned, the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees, maintained said department, specifically the **NEW YORK CITY POLICE DEPARTMENT**.
28. That at all times herein mentioned, the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees, managed said department, specifically the **NEW YORK CITY POLICE DEPARTMENT**.
29. That at all times herein mentioned, the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees, controlled said department, specifically the **NEW YORK CITY POLICE DEPARTMENT**.
30. That at all times herein mentioned, the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees, employed officers to work as representatives and employees of the **CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT**.
31. That at all times herein mentioned, the Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, employed the Defendant Officers “, **NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154** and **NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE**

#1-10", to work as New York County Police Officers and representatives of THE CITY OF NEW YORK and the NEW YORK CITY POLICE DEPARTMENT.

32. That at all times herein mentioned, the Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, employed the Defendant Officers, **"**, **NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10"**, to work as New York City Police Officers and representatives of **THE CITY OF NEW YORK** and the **NEW YORK CITY POLICE DEPARTMENT**.

33. That at all times herein mentioned, the Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, had the duty to maintain and ensure that the actions, acts, activities and behavior of their agents, employees and/or servants, including the defendant Officers herein, conformed to a certain standard of conduct established by law for the protection of others including the Plaintiff, against unreasonable risk of harm.

34. That at all times herein mentioned, the Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, had the duty to maintain and ensure that their agents, employees and/or servants, including the defendant Police Officers herein, acted in such a manner as to not intentionally, wantonly and/or negligently injure others, including the Plaintiff herein.

35. That at all times herein mentioned, Defendant Officers **"**,**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10"**, were agents, servants, representatives and/or employees of the Defendant, **THE CITY OF NEW YORK**.

36. That at all times herein mentioned, Defendant Officers **"**, **NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK**

CITY POLICE OFFICERS JOHN AND JANE DOE #1-10", were agents, servants, representatives and/or employees of the Defendant, **NEW YORK CITY POLICE DEPARTMENT**.

37. That at all time herein mentioned, the Defendant Officer "**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**", had the duty to maintain and ensure that their actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the Plaintiff, against unreasonable risk of harm.
38. That at all times herein mentioned, Defendant Officers "**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**", had the duty to conduct themselves in such a manner so as not to intentionally, wantonly and/or negligently cause injury to others, including the Plaintiff herein.
39. That at all times herein mentioned, Defendant Officers "**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**", had the duty to maintain and ensure that their actions, acts, activities and behavior conformed to a certain standard of conduct established by law for the protection of others, including the Plaintiff, against unreasonable risk of harm.
40. That upon information and belief, on or about the evening of March 23, 2022, the Plaintiff **CHAZ MOORE**, was caused to sustain serious physical injuries while in the custody and control of the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, their agents, servants and/or employees.

41. That upon information and belief, on or about the evening of March 23, 2022, the Plaintiff **CHAZ MOORE**, was detained on and around 128 Lockman Ave., Staten Island, NY 10303.
42. That upon information and belief, and at the aforesaid time and place, Officers of the Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT** and specifically Defendants Officers "**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**", were present at the aforementioned location.
43. Upon information and belief, that at the aforesaid time and place, Police Officers of the Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, and specifically Defendant Officers "**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**", were present at the aforementioned location in the scope and course of their employment as New York City Police Officers.
44. That upon information and belief, at the aforesaid time and place, **CHAZ MOORE**, was forcibly handcuffed and detained by use of excessive force and negligent manner so as to cause and inflict serious physical injuries by the aforementioned Defendant Officers "**NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10**".
45. That upon information and belief, at the aforementioned time and place, Plaintiff **CHAZ MOORE**, was wantonly, intentionally, maliciously, relentlessly, illegally and brutally assaulted, attacked, grabbed, struck and threatened pushed and battered by the aforementioned defendant police officers "**NEW YORK CITY POLICE OFFICER**

**FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE
OFFICERS JOHN AND JANE DOE #1-10".**

46. That by reason of the foregoing, the Plaintiff **CHAZ MOORE**, suffered a "serious injury" under the law.
47. That the foregoing occurrences and the resulting injuries to the Plaintiff were caused solely by the carelessness, recklessness, negligence, intentional and negligent infliction of emotional distress, abuse of process, malicious prosecution, excessive use of force, brutal use of force, wrongful assault and batter done by the Defendants, their agents, servants and/or employees, including the defendant officers named herein, in violation of the Plaintiff's Civil and Constitutional rights, and without any cause, negligence or provocation on the part of the Plaintiff herein.
48. That by reason of the foregoing, Plaintiff was rendered sick, sore, lame, disabled, suffering emotional shock and mental anguish, and this injuries caused great physical pain and emotional pain, some of which are permanent in nature and Plaintiff will be permanently caused to suffer pain, inconvenience and other effects of said injuries; and Plaintiff has and will incur further expense to care for said injuries and has and will in the future suffer loss of time and earnings from employment, and Plaintiff will be unable to perform his usual daily and customary activities as he did prior, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction over this matter.
49. As a consequence of the abuse of authority detailed above, Plaintiff sustained the damages herein before alleged, and hereby make claims for punitive damages for the acts complained of herein.

**AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF PLAINTIFF,
CHAZ MOORE:
RESPONDEAT SUPERIOR**

50. Plaintiff repeats, reiterates, and realleges each and every allegation as set forth in paragraphs numbered 41 through 49 with the same force and effect as if fully set forth herein.
51. Beginning on or about March 23, 2022 Plaintiff was the victim of the tortious conduct perpetuated by Defendant police officers, including Defendant **"NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10"**, whose tortious conduct consisted of assault, battery, intentional and negligent infliction of emotional distress, negligence, violating the Plaintiff's civil rights, excessive force, malicious prosecution, failing to provide reasonable and adequate medical care and acting with deliberate indifference to Plaintiff's needs, and in otherwise carelessly and improperly exercising their authority and power.
52. At the aforesaid time and place, and at all times pertinent to this action, the aforementioned Defendant officers committed the aforementioned tortious conduct that injured the Plaintiff, as agents, servants, officers, and/or employees of the Defendants, including the Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**.
53. As a result of the aforementioned tortious conduct perpetrated by said Defendants, their agents, servants, officers, and/or employees, Plaintiff suffered personal injuries, embarrassment, loss of self-esteem in his community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts.
54. At the time and place of the assault of the Plaintiff by the employees of the Defendants, as aforesaid, such employees were acting within the scope of their employment duties for their employer(s), **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**. Such tortious conduct thereby committed by Defendants

was egregious and oppressive and characterized by malice or wantonness justifying the imposition of punitive damages therefore.

55. The imposition of punitive damages on Defendants, their agents, servants, officers, and employees, for the egregious tortious conduct of the Defendants' employees, is justified on the grounds that Defendants, their agents, servants, officers and employees were reckless or wanton in retaining the employees who committed the torts after knowledge of the employees' proclivities to engage in such conduct.

**AS AND FOR THIRD CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF,
CHAZ MOORE:
NEGLIGENCE IN PERFORMANCE OF DUTIES**

56. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered 1 through 55 with the same force and effect as if fully set forth herein.
57. At the aforesaid time and place, Plaintiff was the victim of negligence on the part of the Defendants, its agents, servants, officers, and employees, which consisted of violating the Plaintiff's civil rights, assault, battery, slander, excessive force, false arrest and imprisonment, malicious prosecution, failure to provide reasonable and adequate medical care and acting with deliberate indifference to the Plaintiff, and in otherwise carelessly and improperly exercising its authority and power.
58. That the Defendants, their agents, servants, officers, and employees negligently, carelessly, and recklessly performed their police officer duties in that they failed to use such care in the performance of their police duties as a reasonable prudent and careful police officer would have used under similar circumstances, in that they carelessly, recklessly and without provocation negligently assaulted the Plaintiff; negligently, carelessly, and recklessly used the threat of physical injury to the Plaintiff and actually caused physical injury upon the Plaintiff thereat; failed to provide adequate medical care after the Plaintiff requested such; negligently threatened the Plaintiff; and in that

the Defendants, their agents, servant and employees were otherwise careless, reckless and negligent.

59. As a direct and proximate cause of the negligence described above, Plaintiff suffered personal injuries and damages, embarrassment, loss of self-esteem in their community, anxiety, inconvenience, mental anguish, humiliation, damages and losses, both physical and psychological, all in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF
CHAZ MOORE:
NEGLIGENT HIRING**

60. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered 1 through 59 with the same force and effect as if fully set forth herein.

61. On or before March 23, 2022, Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, hired defendant police officers, including defendant, officers "NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10", as agents, servants, officers and/or employees.

62. Upon information and belief, the aforementioned defendant Police Officers continued to be employed by Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, through and including March 23, 2022, as agents, servants, officers and/or employees.

63. On or about March 23, 2022, the aforementioned defendant officers were incompetent and unfit to perform the work required in their capacity as agents, servants, officers and/or employees for the Defendants.

64. Upon information and belief, Defendants knew or in the exercise of reasonable care, should have known that a person in Plaintiff's position would be subjected to an

unreasonable risk of harm from the aforementioned Defendants, who were New York City Police Officers.

65. Upon information and belief, at all times hereinafter mentioned, the Defendants breached the duty it owed to Plaintiff to use reasonable care in hiring its employees by its failure to conduct a reasonable investigation into the backgrounds and characters of the aforementioned defendant Officers prior to the time they were hired by the Defendants.
66. Upon information and belief, the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, when they hired the aforementioned defendant Officers, breached the duty it owed to Plaintiff to use reasonable care in hiring its employees by hiring said Officers when Defendants, prior to the time of such hiring, knew or should have known that the defendant Officers were incompetent or unfit for employment.
67. On or about March 23, 2022, the aforementioned defendant Officers assaulted and battered the Plaintiff, intentionally inflicted emotional distress on Plaintiff, violated the Plaintiff's civil rights, used excessive force on, failed to provide reasonable and adequate medical care, and otherwise carelessly and improperly exercised their authority and power as against the Plaintiff.
68. As a direct and proximate result of the Defendants' breach of duty in hiring the aforementioned defendant Officers, Plaintiff was injured in mind and body, still suffers and upon information, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and has expended and incurred diverse sums of money in an effort to cure himself of said injuries to extricate himself from the indignities and humiliation felt by them due to the actions of the Defendants, their agents, servants, and employees, including counsel fees and disbursements and, upon information and belief, will expend further sums in that

direction, and the Plaintiff has been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

**AS AND FOR A FIFTH CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF CHAZ
MOORE:
NEGLIGENT TRAINING AND SUPERVISION**

69. Plaintiff repeats, reiterates, and realleges each and every allegation as set forth in paragraphs numbered 1 through 68 with the same force and effect as if fully set forth herein.
70. That the Defendants, their agents, servants and employees negligently, carelessly and recklessly failed to properly train and supervise their employees, in particular, the named Defendants, in that they failed to train her employees in the proper way to maintain order, to control their tempers and exercise the proper demeanor and temperament; and to otherwise act as reasonable, prudent corrections officers; failed to give them proper instruction as to their demeanor, behavior and conduct as representatives of their employer; and, in that the Defendants, their agents, servants, and employees were otherwise reckless, careless and negligent.
71. That the aforesaid occurrence and the resulting injuries to Plaintiff's mind and body therefrom, were caused wholly and solely by reason of the negligence of the Defendants, their agents, servants and employees without any negligence on the part of the Plaintiff.
72. That by reason of the aforesaid, the Plaintiff was injured in mind and body, still suffers and upon information and belief, will continue to suffer great physical and mental pain, and he was rendered sick, sore, lame and disabled and so remains, and has expended and incurred diverse sums of money in an effort to cure himself of said injuries, to extricate himself from the indignities and humiliation felt by them due to the actions of the Defendants, their agents, servants and employees, including counsel fees and disbursements; and upon information and belief, will expend further sums in that

direction, and the Plaintiff has been otherwise damaged, all in a sum which exceeds the jurisdictional limits of all lower courts.

73. As a direct and proximate result of the acts mentioned above, Plaintiff was caused to incur severe and grievous mental and emotional suffering, fright, anguish, shock, nervousness, anxiety, and feelings of vulnerability. Plaintiff continues to be fearful, anxious, and nervous, for which he was required to seek and receive medical treatment, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts that would otherwise have jurisdiction.

**AS AND FOR A SIX CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF CHAZ
MOORE:
ASSAULT AND BATTERY**

74. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered 1 through 73 with the same force and effect as if fully set forth herein.
75. Upon information and belief, that on or about March 23, 2022, the aforementioned defendant "NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10", violently assaulted the Plaintiff through their use and operation of a police vehicle.
76. That the aforementioned defendant Officers, acting as agents and on behalf of Defendants and within the scope of their employment, intentionally, willfully and maliciously assaulted the Plaintiff **CHAZ MOORE**, in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act, in a hostile and/or offensive manner assaulted the Plaintiff, without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff and caused the Plaintiff to be in fear of immediate death and/or bodily harm, and did in fact cause contact with the Plaintiff and caused Plaintiff bodily harm.

77. The Defendants' actions were willful, intentional and unwarranted, without any just cause of provocations.

**AS AND FOR A SIX CAUSE OF ACTION ON BEHALF OF THE PLAINTIFF CHAZ
MOORE:
VERBAL ABUSE, FALSE ARREST, FALSE IMPRISONMENT**

78. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered 1 through 77 with the same force and effect as if fully set forth herein.

79. That at all time pertinent hereto, "NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10", was acting within the scope of their employment as Officers of the New York City Police Department and the City of New York.

80. Plaintiff was verbally abused, falsely arrested, falsely imprisoned and maliciously prosecuted by Defendants in a manner that was extreme, outrageous and unjustified and cause Plaintiff to suffer physical and severe emotional distress for which the Defendants are individually liable.

81. The verbal abuse, false arrest, and false imprisonment of Plaintiff by Defendants were unjustified and done with actual malice and wanton indifference to and with deliberate disregard for human life and the rights of Plaintiff. Plaintiff is thus entitled to compensatory and exemplary damages.

82. That Defendants did persist in their claims in an effort to continue the imprisonment of the Plaintiff.

83. That the respective Defendants, their agents, servants and/or employees engaged in presenting and/or providing false information and/or testimony for the purpose of prosecuting this action.

84. That Defendants are each liable for compensatory damages under the doctrine of respondeat superior for the internal torts that **“NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10”** committed with the scope of their employment.

**AS AND FOR A SEVENTH CAUSE OF ACTION ON BEHALF OF PLAINTIFF
CHAZ MOORE:
EXCESSIVE FORCE**

85. Plaintiff repeats, reiterates and realleges each and every allegation as set forth in paragraphs numbered 1 through 84 with the same force and effect as if fully set forth herein.

86. Plaintiff alleges that the assault and battery by the Defendants, their agents, servants, officers and/or employees, with the use of excessive force was in violation of their state constitutional and civil rights, as said Defendants acted with deliberate indifference to the Plaintiffs' civil and constitutional rights.

87. The Defendants, their agents, servants, officers, and/or employees acted under color of the authority of law as Police Officers for the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**.

88. Plaintiff alleges that the force used by the Defendants, their agents, servants, officers and employees was unreasonable in light of the circumstances of the assault and thereby violated the rights of the Plaintiff under the Fourth, Fifth, Eighth and Fourteenth Amendment right to be free from such treatment.

89. Plaintiff alleges that the force used by the Defendants, their agents, servants, officers, and employees was unreasonable in light of the circumstances of the assault and thereby violated the rights of the Plaintiff under New York Civil Rights Law section 40-c.

90. The assault and battery of the Plaintiff was unconstitutional as the Defendants did not have to injure the Plaintiff in such a manner as Plaintiff was not a threat to their well-being. The assault and battery committed by the Defendants was not done in a good faith effort to maintain or restore order, but rather was done maliciously and sadistically to cause harm.
91. The conduct aforementioned committed by the Defendants, their agents, servants, officers, and/or employees was excessive, unnecessary, unwarranted, unjustified, without cause, willful, wanton, malicious, intentional, and with clear intent to deprive the Plaintiff of his rights, privileges, and immunities secured to him under the Constitution of the United States of America and of the City and State of New York, Acts of the Congress of the United States of America, which provide for the equal rights of citizens of the United States, and which rights, privileges and immunities are guaranteed by the Due Process Clauses of the Constitution of the United States of America and Title 42, United States Code, Section 1983 justifying the imposition of punitive damages therefore.
92. The Defendants, their agents, servants and employees severely assaulted and battered and falsely arrested and imprisoned the Plaintiff and deprived him of his rights and liberties as set forth in the Constitution of the United States and of the City and State of New York, in that they continued to assault and batter the Plaintiff, without any conduct on the part of the Plaintiff to so warrant; to wit; in that all of the actions of the Defendants, their agents, servants and employees, were committed with the intention to cause bodily and mental injury to the Plaintiff in that the Defendants, their agents, servants and employees caused an assault and batter when they, in a hostile and/or offensive manner, threatened and caused serious injury to the Plaintiff without his consent and with the intention of causing harmful and/or offensive bodily contact to the Plaintiff, all without warrant probable cause or any lawful cause whatever; in that

the Defendants, their agents, servants and employees failed to adequately and properly hire, retain, train, supervise, discipline or in any other way control the behavior and performance of the Defendants, their agents, servants and employees and in their hiring practices in the exercise of their police officer function and their failure to enforce the laws of the State of New York and the United States is evidence of the reckless lack of cautious regard for the rights of citizens of the State of New York and the United States including Plaintiff and exhibited a lack of that degree of due care which prudent and reasonable individuals would show in executing the duties of the Defendants; in the failure of the Defendants, their agents, servants and employees to hire, train, supervise, discipline or in any other way control the Defendants, in the exercise of their functions and their failure to enforce the laws of the State of New York was and is carried out willfully, wantonly, maliciously and with such reckless disregard for the dangers of harm and injury to the citizens of the State of New York including the Plaintiff; in that the acts of the Defendants, their agents, servants and employees herein, the failure of the Defendants to discipline and properly hire the Defendants and the continued employment of the Defendants present a clear and present danger to the citizens of the City and State of New York; in that the Defendants, their agents, servants and employees permitted the use of policy and/or drafted policy that violated the constitutional rights of the Plaintiff; in that each and all of the acts of the Defendants, their agents, servants and employees alleged herein were done not as individuals but under the color and pretense of the statutes, ordinances, regulations, customs and usages of the City and State of New York, and under the authority of their office as police officers for said City and State, and for the Defendants, **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**.

93. Upon information and belief, Defendants **THE CITY OF NEW YORK** and/or **NEW YORK CITY POLICE DEPARTMENT**, and the herein individually named police

officers who are agents, servants, and employees of Defendants, including the aforementioned police officers and defendant **Officers "NEW YORK CITY POLICE OFFICER FURNO STEPHENS SHIELD #: 6154 and NEW YORK CITY POLICE OFFICERS JOHN AND JANE DOE #1-10"**, acting under color of law, have subjected Plaintiff and other persons to a pattern of conduct consisting of assault, battery, negligence, failure to provide reasonable and adequate medical care and intentional infliction of emotional distress in denial of rights, privileges and immunities guaranteed Plaintiff, **CHAZ MOORE**, and other citizens by the Constitution of the United States and the State of New York.

94. Upon information and belief, this systematic pattern of conduct consists of a large number of individual acts of violence and intimidation visited on Plaintiff, **CHAZ MOORE**, and other citizens of the County of Staten Island and State of New York, acting in concert with persons unknown to Plaintiff and under color of law and said acts, while carried out under color of law, have no justification or excuse in law and are instead illegal, improper and unrelated to any activity in which police officers may appropriately and legally engage in the course of protecting persons or property or ensuring civil order.
95. Upon information and belief, although Defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and employees, the Defendants have not taken any steps or made any efforts to halt this course of conduct, to make redress to the Plaintiff or other citizens injured thereby, or to take the proper disciplinary action against any of their employees or agents.
96. The unlawful and illegal conduct of the Defendants, their agents, servants, and employees and each of them, deprived Plaintiff of the rights, privileges and immunities secured to him by the Constitution of the United States and the State of New York, more specifically thereat, the liberty interest in being free from bodily injury.

97. The conduct aforementioned committed by the Defendants, their agents, servants, officers, and/or employees, is of the type that shock the conscience and entitles Plaintiff to an award of punitive damages.
98. As a direct and proximate cause of the aforementioned actions, Plaintiff has suffered severe personal injuries, embarrassment, loss of self-esteem in his community, inconvenience, mental anguish, humiliation, damages, and losses, both physical and psychological.
99. Pursuant to 42 U.S.C. section 1983, Plaintiff seeks an award of attorney fees and costs incurred in bringing this action.
100. That by reason of the aforesaid, the Plaintiff requests the following relief:
- a. Compensatory damages for pain and suffering in a sum which exceeds the jurisdictional limits of all lower courts;
 - b. Punitive damages in a sum which exceeds the jurisdictional limits of all lower courts;
 - c. An award of reasonable attorney's fees, costs and disbursements

WHEREFORE, Plaintiff demands judgment against the Defendants herein, in a sum exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction, together with the costs and disbursements of this action.

Yours, etc.



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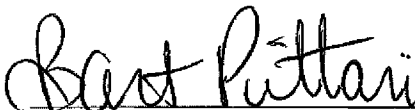
ATTORNEY'S VERIFICATION

BART ANDREW PITTARI, ESQ. an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at GREENSTEIN & MILBAUER, LLP, attorneys of record for Plaintiff(s), CHAZ MOORE, in the action within. I have read the annexed **SUMMONS AND COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

This verification is made by me because Plaintiff is not presently in the county wherein I maintain my offices.

DATED: New York, NY
April 12, 2023


BART ANDREW PITTARI, ESQ.